IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH- V

CA (CAA) 12/230-232/ND/2022

IN THE MATTER OF:

Sections 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

OSCAR INSTITUTE PRIVATE LIMITED
1, LSC, Block A-3,
JanakPuri, Delhi- 110058

.....Applicant No. 1/Transferor Company No. 1

AND

FOURTH DIMENSION MEDIA PRIVATE LIMITED
1, LSC, Block A-3,
JanakPuri, Delhi- 110058

.....Applicant No. 2/ Transferor Company No. 2

AND

SAGUN PHARCEUTICALS PRIVATE LIMITED
A-5, Krishna Park,
New Delhi - 110018

.....Applicant No. 3/ Transferor Company No.3

AND

SEAGULL DRUGS PRIVATE LIMITED
A-5, Krishna Park,
New Delhi - 110018

.....Applicant No. 4/ Transferor Company No. 4

AND

4TH D PHARMA PRIVATE LIMITED
1, LSC, Block A- 3,

JanakPuri, Delhi- 110058

.....Applicant No. 5/ Transferee Company

ORDER DELIVERED ON: 22.02.2022

CORAM:

MR. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)
MR. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

For Petitioner(s): Adv. Amit Goel

ORDER

PER: MR. ABNI RANJAN KUMAR SINHA, MEMBER (Judicial)

This is an application filled by the Applicant Companies under Section 230 to 232 of the Companies Act, 2013 (for brevity "The Act") read with Companies (Compromises, Arrangements and Amalgamation) Rule, 2016 (for brevity "The Rules") in relation to the Scheme of Amalgamation (for brevity the "The Scheme") proposed between the Applicant Companies. In terms of Sections 230 and 232 of the Act, the following prayers have been made for orders:-

a) *Order that the requirement for convening and holding of the meeting of the Equity Shareholders of all the Applicant Companies to consider and approve the Scheme of Amalgamation of Applicant No.1, Applicant No. 2, Applicant No. 3 and Applicant No.4 with Applicant No.5, be dispensed with.*
b) *Order that the convening and holding of the meeting of the Secured Creditors of all the Applicant Companies and convening and holding of the meeting of the Unsecured Creditors of all the Applicant Companies to consider and approve the Scheme of Amalgamation of Applicant No.1, Applicant No. 2, Applicant No. 3 and Applicant No.4 with Applicant No.5, be dispensed with.*

c) *Pass such order or further order(s) which this Hon'ble Tribunal may deem fit, proper and just under the circumstances of the case.*

2. That affidavits in support of the application sworn for and on behalf of the Applicant Companies have been filed by Mr. Subash Chander Sehgal being the authorized signatory.

3. That it is represented that the Scheme does not contemplate any corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. It is represented that the application filed by the Applicant Companies is maintainable in view of Rule 3(2) of the Rules and it is also represented that the registered office of all the Applicant Companies are situated within the territorial jurisdiction of this Tribunal and falls within the domain of Registrar of Companies, NCT, New Delhi.

4. That it is submitted that the proposed amalgamation is sought to be made under the provisions of Section 230 to 232 of the Companies Act, 2013 and the same if sanctioned by this Tribunal the appointed date as provided in the Scheme shall be **01.04.2021.**

5. That in relation to the Transferor Company No. 1, it has been represented that the company has 6 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. It is further submitted that the Transferor Company No. 1 has NIL Secured and 3 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 1 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

6. That in relation to the Transferor Company No. 2, it has been represented that the company has 4 Equity Shareholders and consent

affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. It is further submitted that the Transferor Company No. 2 has NIL Secured and 2 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 2 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

7. That in relation to the Transferor Company No. 3, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. It is further submitted that the Transferor Company No. 3 has NIL Secured and 2 Unsecured Creditors, whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 3 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

8. That in relation to the Transferor Company No. 4, it has been represented that the company has 4 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. It is further submitted that the Transferor Company No. 4 has NIL Secured and 2 Unsecured Creditors whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferor Company No. 4 seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

9. That in relation to the Transferee Company, it has been represented that the company has 3 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. It is further submitted that the Transferee Company has NIL Secured and 3 Unsecured Creditors whose consent affidavits have been placed on record. In relation to the shareholders, secured and unsecured creditors, the Transferee Company seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

10. We have heard the Ld. Counsel for the Applicant Companies and perused the averments made in the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Companies.

11. That the Transferor Company No. 1 - OSCAR INSTITUTE PRIVATE LIMITED was incorporated on 30.04.2012 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 2, 55,00,000/- divided into 25,50,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 2,54,00, 000/- divided into 25,40,000 equity shares of Rs. 10/- each.

12. That the Transferor Company No. 2 - FOURTH DIMENSION MEDIA PRIVATE LIMITED was incorporated on 10.06.2003 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 3,00,00,000/- divided into 30,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 2,07,18,000/- divided into 20,71,800 equity shares of Rs. 10/- each.

13. That the Transferor Company No. 3 - SAGUN PHARMACEUTICALS PRIVATE LIMITED was incorporated on 24.01.1989 in the state of Delhi

under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 10,00,000/- divided into 1,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 7,40,000/- divided into 74,000 equity shares of Rs. 10/- each.

14. That the Transferor Company No. 4 - SEAGULL DRUGS PRIVATE LIMITED was incorporated on 15.03.1990 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 25,00,000/- divided into 2,50,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 22,45,300/- divided into 2,24,530 equity shares of Rs. 10/- each.

15. That the Transferee Company – 4TH D PHARMA PRIVATE LIMITED was incorporated on 22.04.2008 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10/- each.

16. It is seen that the Board of Directors of all the Applicant Companies vide meetings held on 15.11.2021 have unanimously approved the proposed Scheme of Amalgamation. Copies of such resolutions passed have been placed on record.

17. That the Applicant Companies have filed the Audited Financial Statements for the financial year ended 31st March, 2021.

18. That the Applicant Companies have submitted vide Affidavits dt. 17.11.2021 that no inspection, inquiry or investigation is pending against any of the Applicant Companies.

19. That the Certificate of respective statutory auditors of the Applicant Companies have been placed on record confirming that the accounting treatment in the scheme is in conformity with Section 133 of the Companies Act, 2013.

20. Share Valuation Report dated 13.11.2021 obtained from Registered Valuer has also been placed on record.

21. In sequel to the above, in our considered view, the Tribunal, in view of the settled law, is empowered to dispense with the meeting of shareholders if they have given their consent. Further, in view of Section 230(9) of the Companies Act, 2013, the Tribunal is empowered to dispense with calling of a meeting of creditors or class of creditors where such creditors or class of creditors, having at least ninety per cent value, agree and confirm, by way of affidavit, to the scheme of compromise or arrangement. Accordingly, the following directions are given: -

A. In relation to the Transferor Company No. 1:

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting of shareholders is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting of Unsecured Creditors is dispensed with.

B. In relation to the Transferor Company No. 2:

i. **With respect to Shareholders:**

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. **With respect to Secured Creditors:**

Since there is no Secured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

iii. **With respect to Unsecured Creditors:**

Since all the Unsecured Creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

C. In relation to the Transferor Company No. 3:

i. **With respect to Shareholders:**

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. **With respect to Secured Creditors:**

Since there is no Secured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

iii. **With respect to Unsecured Creditors:**

Since all the Unsecured Creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

D. In relation to the Transferor Company No. 4:

i. **With respect to Shareholders:**

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

E. In relation to the Transferee Company:

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

22. **Accordingly, in terms of the above order, CA (CAA) 12 (ND) of 2022 is allowed.**

Sd/-

(L. N. GUPTA)

Member (T)

Sd/-

22 .2022

(ABNI RANJAN KUMAR SINHA)

Member (J)